

		The Court will hear argument from Mr. Ruszecki as to all efforts made to confirm the address of Mr. Castenada, as referenced in Para. 3 of his Declaration. In the event Mr. Ruszecki is able satisfactorily address the efforts made, the court will grant the motion. If counsel does not appear at the hearing, the motion will be denied. In the event the motion is granted, Mr. Ruszecki will be required to submit a new order with all pending dates. The order will become effective upon filing a proof of service of the order on Mr. Castenada. Mr. Ruszecki shall give notice.
11	Arck Services, LLC v. Bekam	Cont. to 8/17.
12	FDC Tech, Inc. v. Intelligenceline.com	The motion by plaintiff FDC Tech, Inc. for an order permitting substituted service of process by electronic mail on defendants pursuant to Code of Civil Procedure §413.30 is DENIED, without prejudice. Code of Civil Procedure §413.30(a) states: "If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." Here, the motion is supported by a single declaration of David Gonzalez, an investigator at Affirm Investigative Solutions, LLC. He states that he did not find any "reliable, actionable contact information identifying the individuals or entities operating or controlling the subject websites." (Gonzalez Decl. ¶15) This declaration falls well short of the required showing of reasonable diligence. Although the declaration refers to the minclaw.com website, it is not explained how this is relevant to this motion. There is no evidence of the attempts made to serve the defendants by each of the methods prescribed by statute. Also, while the motion refers to various efforts to locate the defendants, not only are those arguments significantly lacking in factual detail, attorney argument is not admissible evidence. "Evidence received at a law and motion hearing must be by declaration or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown." (Rule 3.1306(a).)